

25STCV11374 25STCV11374

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-30

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Case Number: 25STCV11374 Hearing Date: June 30, 2026 Dept: 617

Dept.

617

Date:

6-30-26

Case

#: 25STCV11374

Trial

Date: 3-15-27

STAY

MOVING

PARTY: Defendant, County of Los Angeles

RESPONDING

PARTY: Plaintiff, Jennifer Donnell

RELIEF

REQUESTED

Motion

to Stay

SUMMARY

OF ACTION

Plaintiff

Jennifer Donnell sued Defendant County of Los Angeles, alleging that she was demoted due to her age and her reporting of misconduct at the Probation Department. She asserts multiple causes of action under the Fair Employment and Housing Act (FEHA), among other claims.

RULING: Granted.

Defendant

moves to stay the instant action for 6 months pending the outcome of Plaintiff's Writ of Mandate. The Writ comes after the Civil Service Commission denied hearing on Plaintiff's appeal of her reduction from Bureau Chief at the Probation Department to Lieutenant at the Public Defender. Defendant argues the decision on the Writ could potentially bar Plaintiff's suit. Plaintiff opposes the motion, contending a stay is not warranted because the underlying administrative proceeding concerns a narrow civil service rule and will have no impact on the claims and remedies here. Because the outcome of the administrative proceeding could narrow the issues in the instant case, Defendant's motion is granted and the action is stayed.

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489; see OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 ["[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice"]; Cooper v. Superior Court In and For Los Angeles County (1961) 55 Cal.2d 291, 301; Bailey v. Fosca Oil Co. (1963) 216 Cal.App.2d 813, 817.)

A stay is warranted here whether the Writ court merely reverses the Commission's decision for reconsideration or proceeds to decide the merits of the appeal itself. The civil service rule at issue is Rule 25. [Chang Decl. ¶ 3, Ex. B.] That rule prohibits discrimination against an employee based on certain classifications such as race and age as well as "other non-merit factors." (Los Angeles County Code section 5, rule 25.01.) If either the Commission on reversal or the Writ court decides that Plaintiff's reduction was due to legitimate reasons, those findings are binding here and have collateral estoppel effect. (George v. California Unemployment

Ins. Appeals Bd. (2009) 179 Cal.App.4th 1475, 1486-88.) The decision would shape litigation on the issue of reasons for demotion. Therefore, the prudent course is to stay the instant action pending resolution of Plaintiff's administrative claim. Defendant's motion is thus granted.

Defendant represents that the hearing on the writ is scheduled for December 4, 2026. The Court stays the action until the following court day on December 6 and sets an OSC re: Status of Writ for that date. The parties will be required to update the Court on the status of the writ proceeding. Depending on the update, the Court will either lift the stay and set new hearing dates or continue the stay.

Defendant to give notice.